



Coal Industry Act 1983

1983 CHAPTER 60

An Act to increase the limit on the borrowing powers of the National Coal Board; and to make further provision with respect to grants and payments by the Secretary of State in connection with the coal industry.

[21st December 1983]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In section 1(3) of the 1965 Act (which, as amended by section 1 of the 1982 Act, provides for a limit of £4,500 million on the borrowing of the Board and their wholly owned subsidiaries but enables that limit to be increased by order up to £5,000 million) for “£4,500 million” and “£5,000 million” there shall be substituted “£5,500 million” and “£6,000 million” respectively. Borrowing powers of National Coal Board.

2.—(1) In subsection (1) of section 3 of the 1980 Act (which, as amended by section 2(1) of the 1982 Act, provides for the payment of grants in respect of group deficits for financial years of the Board ending in or before March 1984) for the words from “for a financial year of the Board” onwards there shall be substituted “for the financial years of the Board ending in March 1984, 1985 and 1986”. Deficit and operating grants.

(2) For subsection (4) of that section there shall be substituted—

“ (4) The aggregate of the grants made under this section during the financial years of the Board referred to in subsection (1) above shall not exceed £1,200 million, but the Secretary of State may with the approval of the Treasury, on one or more occasions, by order made by statutory instrument increase or further increase that limit up to £2,000 million.

(5) An order shall not be made under subsection (4) above unless a draft of the order has been laid before and approved by a resolution of the House of Commons.”

(3) The following enactments shall cease to have effect, namely—

section 8 of the 1973 Act (grants as respects coking coal supplied during the financial years of the Board ending in March 1980, 1981, 1982 and 1983);

section 2 of the 1977 Act (grants for or by reference to those financial years for promoting the sale of coal to Electricity Boards);

section 3 of the 1977 Act (grants towards costs incurred in those financial years in connection with stocks of coal or coke); and

sections 4 and 5(2) of the 1980 Act (limit on aggregate amount of grants under the above enactments and under section 3 of the 1980 Act).

Grants in connection with pit closures.

3.—(1) Section 6 of the 1977 Act (grants in connection with pit closures) shall be amended as follows.

(2) In subsection (3) (which, as amended by section 6(1)(a) of the 1980 Act, provides for such grants to be made towards expenditure of the Board for financial years of the Board ending in or before March 1984) for “and 1984” there shall be substituted “1984, 1985 and 1986.”

(3) In subsection (5) (which, as amended by section 4(1) of the 1982 Act, provides for a limit of £200 million on the aggregate amount of grants under section 6), for “£200 million” there shall be substituted “£400 million”.

Payments to or in respect of redundant workers.

4.—(1) Section 7 of the 1977 Act (payments to or in respect of redundant workers) shall be amended as follows.

(2) In subsection (1) (which, as amended by section 7(2) of the 1980 Act, provides that the qualifying period for payments under

a scheme under section 7 ends with March 1984) for " 1st April 1984 " there shall be substituted " 30th March 1986 ".

(3) In subsection (5) (which, as amended by section 4(2) of the 1982 Act, provides for a limit of £300 million on the aggregate amount of such payments during the financial years of the Board ending in or before March 1984) for the words from " and 1984 " onwards there shall be substituted " 1984, 1985 and 1986 shall not exceed £1,200 million."

5. In this Act—

Interpretation.

" the 1965 Act " means the Coal Industry Act 1965 ;	1965 c. 82.
" the 1973 Act " means the Coal Industry Act 1973 ;	1973 c. 8.
" the 1977 Act " means the Coal Industry Act 1977 ;	1977 c. 39.
" the 1980 Act " means the Coal Industry Act 1980 ;	1980 c. 50.
" the 1982 Act " means the Coal Industry Act 1982 ;	1982 c. 15.
" the Board " means the National Coal Board.	

6.—(1) This Act may be cited as the Coal Industry Act 1983. Citation, repeals and extent.

(2) This Act and the Coal Industry Acts 1946 to 1982 may be cited together as the Coal Industry Acts 1946 to 1983.

(3) The enactments mentioned in the Schedule to this Act (which include certain spent provisions) are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act does not extend to Northern Ireland.

Section 6(3).

SCHEDULE

REPEALS

Chapter	Short title	Extent of repeal
1973 c. 8.	The Coal Industry Act 1973.	Section 8.
1977 c. 39.	The Coal Industry Act 1977.	Sections 2 and 3.
1980 c. 50.	The Coal Industry Act 1980.	Sections 4 and 5. Section 7(2).
1982 c. 15.	The Coal Industry Act 1982.	Sections 1 and 2. Section 4. In section 5, the definitions of "the Act of 1965" and "the Act of 1980".